

		demonstrates a triable issue of fact as to this issue of duty. Therefore, the motion is denied.
13	2023-01343055 <i>Surdyk's Decorating vs. McAllister</i>	Motion – Other CONTINUED
14	2025-01487775 <i>Yun vs. Lee</i>	Order to Show Cause re: Preliminary Injunction The Order to Show Cause Re: Preliminary Injunction is CONTINUED to _____. Plaintiff is ORDERED to properly serve Defendants with the summons and complaint and the order to show cause. “A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (Cal. Rules of Court, rule 3.1150(a).) Plaintiff has not properly served Defendants with the Complaint. The proofs of service of summons show Plaintiff’s process server served the summons and complaint on a receptionist at Chung & Reynolds Law Firm. “A summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.” (Code Civ. Proc., § 416.90.) The plaintiff bears the burden of proof to show the person served was authorized to by the defendant to accept service of process. (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.) A personal attorney or an attorney representing the party in another lawsuit is not presumed to be an authorized person. (<i>Zirbes v. Stratton</i> (1986) 187 Cal.App.3d 1407, 1416-1417.) Plaintiff has presented no evidence Chung & Reynolds was authorized to accept service for this lawsuit by either Defendant. Thus, the Court lacks jurisdiction to enter an injunction against Defendants.
15	2024-01439438 <i>Chou vs. Mercedes-Benz USA, LLC</i>	Demurrer to Amended Complaint (Continued from 11/6) Defendant Mercedes-Benz USA, LLC’s Demurrer is CONTINUED to _____. Plaintiff may file an additional opposition no later than 9 court days before the new hearing date and Defendant may file an additional reply no later than 5 court days before. Defendant’s request for judicial notice is granted. (See <i>Ascherman v. General Reinsurance Corp</i> (1986) 183 Cal.App.3d 307, 310-311 [courts